ORDINANCE NO. -24-005Z
Town of North Providence
AN ORDINANCE AMENDING
CHAPTER 35 ZONING
The text below in underline is text to be added to the zoning code.
The text below in ~~strikethrough~~ is removed from the zoning code.

Article V - Variances and Special Use Permits

501. Application An application for relief from the literal requirements of a Zoning Ordinance because of hardship or an application for a special use permit may be made by any person, group, agency or corporation, provided that the owner or owners of the subject property must join in any application, by filing with the Zoning Enforcement Officer an application describing the request and supported by such data and evidence as may be required by the Board.

An application shall be signed by the owner of the subject property or by the attorney or duly authorized agent of the owner. An application from a corporation must be signed by its attorney or duly authorized officer of the corporation. The Zoning Enforcement Officer shall immediately transmit such application received to the Board and shall transmit a copy of each application to the Planning Board. All applications shall be accompanied at the time of filing by a plot plan drawn to scale and stamped by a Registered Land Surveyor, Engineer or Architect showing the location of all lot and street lines, existing and proposed structures and utilities of the property which is the subject of the appeal or application. All applications shall also be accompanied by a plat map showing lot and street lines and approximate location of structures of premises adjacent to the property which is the subject of the appeal or application, a list of all property owners within two hundred (200) feet of the subject property and any other information as may be required by the rules of the Board.

Pursuant to RIGL Section 45-24-41 & 45-24-42, the Zoning Board, or Planning Board under unified development review, may grant both a dimensional variance and a special use permit simultaneously. If the special use could not exist without the dimensional variance, the Zoning Board of Review, or Planning Board under unified development review, shall consider the special use permit and the dimensional variance together to determine if granting the special use is appropriate based upon both the special use criteria and the dimensional variance evidentiary standards.

Requests for dimensional and use variances and special use permits submitted under a unified development review provision of this zoning ordinance shall be submitted as part of the subdivision or land development application to the administrative officer of the Planning Board. All subdivision and land development applications submitted under the unified development review provisions of this zoning ordinance shall have a public hearing which shall meet the requirements of Section 502.

502. Hearing and Notice
The Zoning Board shall, immediately upon receipt of an application, for a variance in the application of the literal terms of the zoning ordinance, may request that the Planning Board and/or staff ~~shall~~ report its findings and recommendations, including a statement on the general consistency of the application with the goals and purposes of the Comprehensive Plan of the Town, in writing to the Zoning Board within thirty (30) days of receipt of the application from that board. The Zoning Board shall hold a public hearing on any application for variance or special-use permit in an expeditious manner, after receipt, in proper form, of an application, and shall give public notice

thereof at least fourteen (14) days prior to the date of the hearing, which notice shall include the precise location of the subject property, including the street address, and a description of the relief sought, as follows:

A. In a newspaper of ~~general~~ local circulation in the Town, and

B. By ~~Certified~~-First Class Mail to:
(1) all owners of the subject property in question; and
(2) all property owners of record of land within two hundred (200) feet of the property, which is the subject of the application, whether within the Town or within an adjacent city or town; and
(3) the city or town council of any city or town to which one or more of the following pertain:
(a) which is located in or within not less than two hundred (200) feet of the boundary of the subject property; or
(b) Where there is a public or quasi-public water source, or private water source that is used or is suitable for use as a public water source, within two thousand (2,000) feet of the subject property, regardless of municipal boundaries; and
(4) the governing body of any state or municipal water department or agency, special water district, or private water company that has riparian rights to a surface water resource and/or surface watershed that is used or is suitable for use as public water source and that is within two thousand (2,000) feet of the subject property, provided, however, that the governing body of any state or municipal water department or agency, special water district, or private water company has filed with the Zoning Enforcement Officer a map survey, which shall be kept as public record, showing areas of surface water resources and/or watersheds and parcels of land within two thousand (2,000) feet thereof.

C. The same notice shall be posted in the Town Clerk's office and one other municipal building and the notice shall be accessible on the homepage of the Town's website at least fourteen (14) days prior to the hearing.

D. For any notice sent by first-class mail, the sender of such notice shall submit a notarized affidavit to attest to such mailing.

~~C~~E. All costs of notification shall be borne by the applicant.

~~D~~F. Any party may appear at any hearing in person or by agent or attorney.

503. Standard for Variances

A. In granting a variance, the ~~Board~~ the zoning board of review, or the planning board under unified development review as appropriate, shall require that evidence to the satisfaction of the following standards be entered into the record of the proceedings:
(1) that the hardship from which the applicant seeks relief is due to the unique characteristics of the subject land or structure and not the general characteristics of the surrounding area; and not due to a physical or economic disability of the applicant;
(2) that said hardship is not the result of any prior action of the applicant ~~and does not result primarily from the desire of the applicant to realize greater financial gain~~;
(3) that the granting of the requested variance will not alter the general characteristic of the surrounding area or impair the intent or purpose of this Ordinance or the Comprehensive Plan of the Town upon which this ordinance is based; ~~and~~
~~(4) that the relief to be granted is the least relief necessary.~~

B. The Board shall in addition to the above standards, require that evidence be entered into the record of the proceedings showing that:
(1) in granting a use variance, the subject land or structure cannot yield any beneficial use if it is required to conform to the provisions of this Ordinance. Non conforming use of neighboring land or structures in the same district and permitted use of land or structures in an adjacent district shall not be considered grounds for granting a use variance; and

(2) in granting a dimensional variance, that the hardship that will be suffered by the owner of the subject property if the dimensional variance is not granted shall amount to more than a mere inconvenience, ~~which shall mean that there is no other reasonable alternative to enjoy a legally permitted beneficial use of the owner's property.~~ meaning that relief sought is minimal to a reasonable enjoyment of the permitted use to which the property is proposed to be devoted. The fact that a use may be more profitable or that a structure may be more valuable after the relief is granted shall not be grounds for relief.

APPROVED AS TO FORM AND LEGALITY:

Town Solicitor

Adopted: June 4, 2024

Council President

Approved: June 6, 2024

Mayor

Town Clerk